

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
COUNTY CIVIL

COLONIAL MOBILE MANOR, LIMITED,
LLLP d/b/a COLONIAL MOBILE MANOR,

Plaintiff,

v.

Case No.: 2015 CC 1274

MARLIN J. YODER a/k/a MARLIN JAY
YODER and ANY UNKNOWN TENANT(s)

Defendant.

**DEFENDANT, MARLIN J. YODER'S ANSWER, AFFIRMATIVE DEFENSES, NOTICE
OF PLEA FOR ATTORNEY'S FEES, AND MOTION TO DETERMINE RENT**

COMES NOW, Defendant, MARLIN J. YODER (hereinafter "YODER"), and responds
to the Complaint filed in the above-captioned matter as follows:

ANSWER

Count I

1. Admitted for jurisdictional purposes only.
2. Admitted.
3. Admitted.
4. Denied.
5. Without knowledge therefore denied.
6. Admitted Lot #168 was leased to Defendant.
7. Admitted as to YODER.
8. Denied.

9. Admitted only as to receiving the notice attached as Plaintiff's Exhibit B, denied as to everything not specifically admitted.

10. Admitted only as to receiving the notice attached as Plaintiff's Exhibit C, denied as to everything not specifically admitted.

11. Denied.

12. Denied.

13. Admitted.

14. Denied.

15. Denied.

16. Admitted only that Fla. Stat. § 723.068 provides for a prevailing attorney fee provision.

All allegations not specifically admitted are denied.

Count II

17. Admitted for jurisdictional purposes only.

18. Defendant re-alleges the answers contained within paragraphs 1 through 16.

19. Denied.

All allegations not specifically admitted are denied.

Count III

20. Admitted for jurisdictional purposes only.

21. Defendant re-alleges the answers contained within paragraphs 1 through 16 and paragraph 19.

22. Admitted.

23. Denied.

24. Though listed as Paragraph 23 in the Complaint, said allegation is Denied.

25. Though listed as Paragraph 24 in the Complaint, said allegation is Denied.

All allegations not specifically admitted are denied.

ANSWER AND AFFIRMATIVE DEFENSES TO ALL COUNTS

First Affirmative Defense

The Plaintiff has paid or has attempted to pay all rent due and owing, along with all other financial obligations required. Any appearance of default or delinquency in rental payments or other monies has been caused entirely by the Plaintiff. The Plaintiff should therefore be precluded for evicting Defendant, based on its own conduct.

Second Affirmative Defense

The Plaintiff failed to provide or deliver written notice/demand for unpaid rent or other monies which it alleges in the Complaint. Pursuant to Fla. Stat. § 723.061(1)(a), written demand must be made by the Plaintiff prior to bringing the eviction proceedings. Pursuant to Fla. Stat. § 723.061(4), any notice to the Defendant must be posted on the premises and sent by certified or registered mail, return receipt requested, and that delivery is deemed to occur five days after the date of the postmark.

Third Affirmative Defense

The Plaintiff has waived its right to eviction based on conduct which infers the relinquishment of a known right. Though Defendant, adamantly denies any violation of the “Rules and Regulations”, for the sake of this defense, any violations claimed by the Plaintiff to be the cause of this eviction proceeding have been waived by the Plaintiff.

Fourth Affirmative Defense

The Plaintiff brings this action with unclean hands and in bad faith. Pursuant to Fla. Stat. § 723.021, every party to a dispute is obligated to act in good faith and fair dealings. Upon information and belief, Defendant alleges that Joseph Nichols, an agent of the Plaintiff, has personal issues with the Defendant and is using Fla. Stat. 723, in bad faith to cause harm on Defendant. This defense is not limited to the allegations above, regarding the bad faith on the part of the Plaintiff.

Fifth Affirmative Defense

Pursuant to Fla. Stat. § 723.061(c), no properly promulgated rule or regulation may be arbitrarily applied and used as a ground for eviction. Again, Defendant adamantly denies any violation of the “Rules and Regulations”, however, for the sake of this defense, Defendant alleges the Plaintiff is arbitrarily enforcing the park rules and regulations in violation of Fla. Stat. § 723.061(c).

Sixth Affirmative Defense

The Plaintiff has failed to meet the condition precedents prior to initiating this proceeding.

Seventh Affirmative Defense

The Defendant alleges that Rule #7 – Lot & Home Maintenance – is unclear and ambiguous, and not consistent with the other provisions of the “Rules and Regulations” based on the issues raised by Plaintiff. More specifically to this defense, Defendant alleges the section regarding maintenance of “trees, plants, shrubs, and lawn” is ambiguous. Defendant also alleges the section pertaining to storage is not consistent with the other provisions of the rules. Any ambiguity and/or inconsistency must be construed against the Plaintiff as the drafter.

Plaintiff claims Defendant is in violation of Rule #7 because trees are encroaching on “his” roof. Nowhere in the “Rules and Regulations” is that stated to be a violation. Trees provide shade and are a natural source of cooling. If trees encroaching on structures were to be considered a lack of maintenance, then almost every property owner in Florida would be considered to have an upkeep lawn. The tree(s), if deemed to be encroaching, is/are encroaching on the Defendant’s own property/structure. Any encroachment of a tree is not causing an issue or harm to a neighboring property.

Additionally, Plaintiff claims Defendant is in violation of Rule #7 by having a trash can, lawn mower, and lawn equipment on his property. This alleged violation is completely contradictory to the very essence of Rule #7 “Lot & Home Maintenance.” On one hand the Plaintiff request property owners to maintain their plants and shrubs, and mow their lawns once a week, or else they are in violation. Rule #14 pertains to garbage collection twice per week. It is hard to imagine how the Defendant is expected to maintain and mow his lawn as requested by the Plaintiff and properly dispose of trash, yet not have a trash can or lawn equipment on his property.

These rules are unclear, ambiguous, inconsistent, and cannot be the basis for this eviction proceeding.

Eighth Affirmative Defense

The principle of Equitable Estoppel prevents the Plaintiff with the right to evict based on the conduct of the Plaintiff which was relied on to the detriment of Yoder.

Ninth Affirmative Defense

The Plaintiff has brought this action as Retaliation and pursuant to Fla. Stat. 723.0615 is precluded from prevailing in this action.

NOTICE OF PLEA FOR ATTORNEY'S FEES

Defendant(s) have had to hire the undersigned counsel to defend this action. Pursuant to Fla. Stat. § 723.068, if Defendant prevails in this matter, Defendant is entitled to have his reasonable attorney's fees and costs paid by Plaintiff. Defendant demands attorney's fees, costs, and expenses in defending this action.

MOTION TO DETERMINE RENT OR OTHER MONIES

The Defendant has at all times material to this claim paid or has attempted to pay the appropriate amount of rent at the beginning of each month. Defendant states that any rent or other monies the Plaintiff claims is due and owing is solely caused by Plaintiff.

Defendant demands strict proof of amounts due and owing, and requests Plaintiff to specifically explain and renderer proof of any amounts due and owing.

The Defendant request that a hearing be held to determine how much rent, if any, is owed or need be deposited into the court registry to maintain his defenses.

WHEREFORE, the Defendant, YODER, for the reasons stated above, requests that this Court hold a hearing to determine how much rent, if any is owed.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of has been furnished via email to William C. Price III, Esq., 522 12th Street West, Bradenton, FL 34205,
weprice@wepriceiiiipa.com.

SYPRETT, MESHAD, RESNICK, LIEB, DUMBAUGH,
JONES, KROTEC & WESTHEIMER, P.A.
1900 Ringling Boulevard
Sarasota, Florida 34236
(941) 365-7171 / (941) 365-7923 fax
deisemann@smrl.com



DEREK W. EISEMANN
Florida Bar No.: 0092735
Attorney for Defendant, YODER